

Court No. - 39

Case :- WRIT - C No. - 3942 of 2019

Petitioner :- Premvati

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Ashok Kumar

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble B. Amit Sthalekar,J.

Hon'ble Mrs. Manju Rani Chauhan,J.

Heard Sri Ashok Kumar, learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel for the respondent no.3 and the learned Standing Counsel for Respondents no. 1 and 2.

The petitioner in the writ petition is seeking quashing of the demand notice dated 18.12.2018 whereby a sum of Rs. 7,02,500/- is sought to be recovered from the petitioner towards electricity dues.

The allegation is that during the inspection, the petitioner was found using electricity unauthorizedly directly from the main line through 'Katiya'.

Since this is a matter of theft, in our opinion, the petitioner has a remedy under Clause 6.8 of the Electricity Supply Code, 2005 by approaching the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd. Kiravali, Agra-respondent no.3.

This writ petition is, therefore, **disposed of** with a direction that if the petitioner appears before the respondent no. 3- Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd. Kiravali, Agra **on 13.02.2019 at 11:00 a.m.** along with certified copy of this order as well as his representation/objection, the respondent no.3 shall hear the petitioner and decide the representation/objection of the petitioner, in accordance with law, within a further period of fifteen days.

It is made clear that the court has not adjudicated the claim of the petitioner on merit.

Order Date :- 5.2.2019

JK Yadav